

the resultant new version of Art. 2(1), item 11, RFees did not contain any legal foundation for the declaration required under points 3 and 4 of the Notice. The notice established the additional requirement of a declaration to be submitted with the fee payment – a requirement devoid of any basis in law. The boards were bound solely by the statutory provisions, not by EPO notices concerning the application or interpretation of those provisions (J 8/18, Art. 23(3) EPC). This meant at the very least that a declaration under points 3 and 4 of the notice could not already be demanded on payment of the reduced appeal fee. The boards were anyway empowered and obliged to examine whether an appeal was admissible and had been duly filed throughout the appeal proceedings, and so even after the time limit for appeal had elapsed. The boards were especially called on to examine this when other parties to the proceedings disputed that those requirements were met. The boards' general practice in this respect was to accept a declaration and supporting evidence of compliance with the requirements under R. 6(4) EPC even after the time limit for appeal had elapsed and the appeal proceedings were under way (see T 3023/18).

In T 3023/18 notice of appeal was filed in the name of Borealis AG, and the reduced appeal fee paid, on the last day for doing so. In its first communication, the board invited the appellant to file the hitherto missing declaration necessary for the fee reduction. The appellant thereupon confirmed that it was not entitled to the reduced fee.

The board pointed out that the non-filing of the required declaration was not evidence of a clear intention by the appellant to pay the full appeal fee. In the light of the above, the board did not accept that it was possible to establish that the appellant's intention was to pay the full appeal fee. The appeal was deemed not to have been filed and the board ordered reimbursement of both fee amounts (G 1/18, OJ 2020, A26). However, see also T 1474/19.

– Request for correction under Rule 139 EPC

In T 317/19 the appellant filed the notice of appeal within the two-month time limit. However, due to an error in the "Method of payment" box on Form 1038E (the box did not indicate a method but stated "not specified"), the debit order for the payment of the appeal fee was not carried out before expiry of that time limit. Following Opinion G 1/18 (OJ 2020, A26) this resulted in the appeal being deemed not to have been filed. To change the above result, the appellant filed a request for correction under R. 139 EPC. The board referred to G 1/12 (OJ 2014, A114) where the Enlarged Board affirmed that a correction of errors under R. 139 EPC in documents filed with the EPO is generally applied. The board was aware that the Enlarged Board had made its findings only in the context of the correction of an error in the appellant's name. However, the board failed to see why it should not equally apply to a correction of an erroneously filled payment form. In the case in hand the appellant met the requirements for a correction under R. 139 EPC as summarised in G 1/12. As a consequence, the appeal was retroactively deemed to have been filed. Thus, an error in a duly filed form for paying the appeal fee may be corrected under R. 139, first sentence, EPC. See also J 8/19, in which the Legal Board concluded that the requirements for the requested correction of the amount of the appeal fee indicated in the

debit order in Form 1038E were met. As a consequence, the appeal was retroactively deemed to have been filed, the correction under R. 139 EPC having effect ex tunc.

In T. 444/20 the board held, with reference to T. 317/19, that an error in a duly filed form for paying the appeal fee may be corrected under R. 139 first sentence EPC. The board also referred to T. 2620/18, which concerned very similar circumstances. In that case too the appellant had confused the then current reduced appeal fee with the former sole appeal fee and had indicated the incorrect amount of EUR 1 880 both in the notice of appeal letter and in the payment form. According to the board in that case, it was plausible that the appellant had been guided by the previously applicable, known fee amount of EUR 1 880 and had mistakenly assumed that it was paying the full fee (EUR 2 255). The present board saw no reason to deviate from that decision. Therefore, the board was satisfied that the correction sought introduced what was originally intended by the appellant and that this original intention was immediately apparent. Lastly, the appellant had filed its request under R. 139 EPC merely two weeks after the board's communication, in which it was indicated for the first time that the prescribed appeal fee had not been validly paid. The board concluded that the requirements for the requested correction were met (see G. 1/12).

In T. 2620/18, the appellant relied on T. 152/82 of 5 September 1983 (OJ 1984, 301) and the EPO practice of correcting underpayments in debit orders of its own motion and debiting the correct, full amount where the payer's payment intention is clear. In the board's opinion, this EPO practice was not readily applicable to a differentiated fee structure like that of appeal fees. If the debit order explicitly stated the intention to pay the reduced appeal fee, the EPO could not reasonably assume of its own accord that the payer actually wanted to pay the full fee. Moreover, not filing a declaration under R. 6(6) EPC was not an unambiguous indication of an intention to pay the full fee. The board interpreted the appellant's submissions in its statement of grounds of appeal as amounting in substance to a request for correction of the debit order and considered it credible that the appellant had indeed presumed it had paid the full appeal fee. However, it found that this request for correction had not been filed without delay (criterion (d) in the list in G. 1/12, OJ 2014, A114, point 37 of the Reasons). The request in the statement of grounds had not been filed until six weeks after the mistake had been discovered. In the board's view, the appellant's merely having submitted another debit order at an earlier stage did not amount to an implied request for correction (R. 139 EPC).

– Difference not small

In T. 2620/18 and T. 3023/18, the difference between the amount paid and the full appeal fee was not considered to be small. It could reasonably be assumed that, in introducing the reduced appeal fee, the legislator had not been simply looking to provide a marginal, as it were symbolic fee reduction for natural persons and small and medium-sized enterprises.

In T. 2422/18, the appellant claimed to have paid the reduced appeal fee under R. 6(4) EPC by mistake and said that it would pay the outstanding EUR 375 later. The board rejected its arguments invoking the protection of legitimate expectations, observing

that the outstanding amount was not an "amount lacking" within the meaning of Art. 8, fourth sentence, RFees.

2.5.5 Appeal deemed not to have been filed

In G 1/18 (OJ 2020, A26), the point of law referred by the President of the EPO was whether an appeal is to be treated as not filed or as inadmissible in cases of a failure to observe the two-month time limit under Art. 108 EPC owing to belated payment of the appeal fee and/or belated filing of notice of appeal.

The Enlarged Board answered the referred point of law as follows:

1. An appeal is deemed not to have been filed in the following cases: (a) where notice of appeal was filed within the two-month time limit prescribed in Art. 108, first sentence, EPC AND the appeal fee was paid after expiry of that two-month time limit; (b) where notice of appeal was filed after expiry of the two-month time limit prescribed in Art. 108, first sentence, EPC AND the appeal fee was paid after expiry of that two-month time limit; (c) where the appeal fee was paid within the two-month time limit prescribed in Art. 108, first sentence, EPC for filing notice of appeal AND notice of appeal was filed after expiry of that two-month time limit.

2. In the cases referred to in answers 1(a) to (c), reimbursement of the appeal fee is to be ordered ex officio.

3. Where the appeal fee was paid within or after the two-month time limit prescribed in Art. 108, first sentence, EPC for filing notice of appeal AND no notice of appeal was filed at all, the appeal fee is to be reimbursed.

On this in connection with reimbursement of appeal fees, see also chapter V.A.11.3. "Appeal deemed not to have been filed".

2.6. Statement of grounds of appeal

2.6.1 Legal provisions

Under Art. 108 EPC a statement setting out the grounds of appeal shall be filed within four months after the date of notification of the decision in accordance with the Implementing Regulations. Under R. 99(2) EPC, appellants have to indicate in the statement of grounds of appeal the reasons for setting aside the decision impugned, or the extent to which it is to be amended, and the facts and evidence on which the appeal is based.

Under Art. 12(3) RPBA 2020 the statement of grounds of appeal and the reply shall contain a party's complete appeal case. Accordingly, they shall set out clearly and concisely the reasons why it is requested that the decision under appeal be reversed, amended or upheld, and should specify expressly all the requests, facts, objections, arguments and evidence relied on. Art. 12(3) RPBA 2020 has the same content as

Art. 12(2) RPBA 2007, apart from a few amendments (for consistency with the new paragraphs in Article 12(2) and (6) RPBA 2020, the terms "requests" and "objections" were added).

Under R. 64(b) EPC 1973 a statement identifying the extent to which amendment of the impugned decision was requested already had to be included in the **notice of appeal**. T 358/08 contains a detailed analysis of the situation under R. 64(b) EPC 1973 as compared to the provisions of R. 99(1) and (2) EPC.

If the notice of appeal does not contain anything that can be regarded as a statement of grounds, the appeal is inadmissible unless a written statement of grounds is received by the EPO within the time limit set in Art. 108 EPC (R. 99(2) EPC and R. 101(1) EPC) (T 13/82, OJ 1983, 411).

2.6.2 Form of statement of grounds of appeal

Whether a document complies with Art. 108 EPC, third sentence, is considered to depend on its substance and not upon its heading or form. In T 145/88 (OJ 1991, 251) the document headed "Statement of Grounds" was found not to contain even the minimum of reasoning and thus was not a statement of grounds at all. The mere existence of some argumentation and carrying the heading "Statement of the Grounds of Appeal" or "Grounds" does not automatically pass the threshold of Art. 108 EPC, even if clearly relating to the substance of the impugned decision (T 1581/08, referring to T 145/88). The board went on to point out that sufficiency is also not a question of volume. There is no minimum requirement as to the length or the fullness of detail of the argumentation which is necessary for an admissible appeal. In this context a distinction is to be drawn between insufficiency for the purposes of admissibility and insufficiency as far as the persuasiveness of the grounds is concerned which – if the arguments are not convincing – results in the dismissal of the appeal (see T 922/05 and below). See also e.g. T 23/03 and T 613/07.

The board in T 74/12 pointed out that R. 99(2) EPC did not require a case number to be indicated in the statement of grounds of appeal. That logically implied that an appeal could not be found inadmissible simply because the case number was missing, as only the law, viz. the EPC and its implementing regulations, could define the conditions for taking certain procedural steps and the consequences to be expected if those steps were not taken. A procedural principle stated that rights or a means of redress could be lost only if such a consequence was clearly and precisely prescribed (see also T 1638/17).

2.6.3 Content of the statement of grounds of appeal

a) General

Under Art. 108, sentence 3 EPC, the appeal has to be substantiated in line with the Implementing Regulations (R. 99(2) EPC). As per Art. 12(3) RPBA 2020, the statement of grounds of appeal and the reply have to contain a party's complete appeal case (see Art. 12(2) RPBA 2007).

Whether a statement of grounds meets the requirements of Art. 108 EPC can only be decided on a case-by-case basis (T 162/97, T 165/00, T 1435/11).

The board in T 1435/11 added that it was the boards' settled case law that the grounds for appeal had to set out an appellant's case – meaning not just its arguments but its requests too – in a way that was coherent, clear and sufficiently substantiated (see T 760/08, T 446/00). Indeed, the purpose of the statement of grounds, together with the notice of appeal, was to define the scope of the appeal. This definition was at the sole discretion of the appellant (see T 2532/11).

In T 23/10 the board stated that, whether or not sufficient grounds relating to the requests submitted, was immaterial for the purposes of the admissibility of the appeal, because an appeal can only be assessed as a whole. In other words, if the admissibility requirements of Art. 108, third sentence, EPC are fulfilled in respect of at least one request, let alone of several requests, the appeal as a whole will be admissible (T 509/07, T 1763/06). The fact that the appellant, in the course of appeal proceedings, withdrew the main and auxiliary request and thereby abandoned its refutation of the reasoning of the impugned decision under Art. 100(c) EPC, had no bearing on the assessment of the admissibility of the appeal as filed. The admissibility requirements of Art. 108, third sentence, EPC concerning the appeal filed by the patentee were met within the time limit for filing the statement of grounds of appeal at least as far as the main request and auxiliary requests were concerned. As a consequence, the appeal of the patentee was admissible. See also T 1668/14.

If the appellant submits that the decision under appeal is incorrect, then the statement setting out the grounds of appeal must enable the board to understand immediately why the decision is alleged to be incorrect and on what facts the appellant bases its arguments, without first having to make investigations of its own (J 10/11, see also T 220/83, OJ 1986, 249, and T 177/97; affirmed by numerous decisions, see for example T 573/09 and T 918/17).

Exceptionally, it has been acknowledged that the requirement for admissibility may also be regarded as satisfied if it is immediately apparent upon reading the decision under appeal and the written statement of grounds that the decision should be set aside (see J 22/86, OJ 1987, 280).

In T 343/16 the board stated that references to the statement of grounds of other appellants were permissible. In the case in hand opponent 1 had referred to its notice of appeal and in support of its request that the patent be revoked, invoked the statement of grounds of appeal of appellant 2, which was stated to be incorporated by reference. The board held that the appeal by opponent 1 was admissible.

b) Direct link between the contested decision and the statement of grounds of appeal

There must be a causal relationship between the arguments in the statement of grounds of appeal and the reasons given in the decision under appeal (T 2012/16). The absence